

Section 10 in The Consumer Protection (Amendment) Act, 2002

10. Amendment of section 14.-

In section 14 of the principal Act, - (a) in sub-section (1), - (i) in clause (d), the following proviso shall be inserted, namely: - " Provided that the District Forum shall have the power to grant punitive damages in such circumstances as it deems fit;"; (ii) in clause (e), for the words " remove the defects", the words " remove the defects in goods" shall be substituted; (iii) after clause (h), the following clauses shall be inserted, namely: - (ha) to cease manufacture of hazardous goods and to desist from offering services which are hazardous in nature; (hb) to pay such sum as may be determined by it, if it is of the opinion that loss or injury has been suffered by a large number of consumers who are not identifiable conveniently: Provided that the minimum amount of sum so payable shall not be less than five per cent. of the value of such defective goods sold or services provided, as the case may be, to such consumers: Provided further that the amount so obtained shall be credited in favour of such person and utilized in such manner as may be prescribed; (hc) to issue corrective advertisement to neutralize the effect of misleading advertisement at the cost of the opposite party responsible for issuing such misleading advertisement;"; (b) in sub-section (2), for the proviso, the following proviso shall be substituted, namely: - " Provided that where a member, for any reason, is unable to conduct a proceeding till it is completed, the President and the other member shall continue the proceeding from the stage at which it was last heard by the previous member.".